

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

DIANA PONCE JUAREZ,
INDIVIDUALLY, AND AS
NEXT FRIEND OF E.H. AND S.R.

Civil Case No. _____

COMPLAINT

Plaintiffs

v.

UNITED STATES OF AMERICA

Personal Injury Action Under
the Federal Tort Claims Act
(28 U.S.C. § 1346(b))

Defendant

PLAINTIFFS' ORIGINAL COMPLAINT

Plaintiffs, Diana Ponce Juarez, Individually, and as Next Friend of Emma Hernandez and Sabrina Rosas, hereby complain of the United States of America ("Defendant"), and would respectfully show the Court the following:

I.

PARTIES, JURISDICTION, SERVICE OF PROCESS, AND VENUE

1.1 This is a case arising out of bodily injuries caused by a United States Postal Service vehicle.

1.2 Plaintiff, Diana Ponce Juarez, resides, within the jurisdiction of this court.

1.3 Minor Plaintiff, E.H., resides, within the jurisdiction of this court.

1.4 Minor Plaintiff, S.R., resides, within the jurisdiction of this court.

1.5 The Defendant is the United States of America.

1.6 This Federal District Court has jurisdiction of this cause, because this action is brought pursuant to and in compliance with 28 U.S.C §§1346(b), 2671-2680 et seq., commonly

known as the “Federal Tort Claims Act”, and 39 U.S.C. §409(c) which vests exclusive subject matter jurisdiction of Federal Tort Claims litigation in the Federal District Court.

1.7 The United States of America may be served with process in accordance with Rule 4(i) of the Federal Rules of Civil Procedure by serving a copy of the Summons and of the Complaint on United States Attorney Jennifer Lowery, United States Attorney for the Southern District of Texas, by certified mail, return receipt requested at her office, United States Attorney, Southern District of Texas, 1000 Louisiana Street, Suite 2300, Houston, TX 77002, to the attention of the Civil Process Clerk, and by serving a copy of the Summons and Plaintiffs’ Original Complaint on Merrick B. Garland, Attorney General of the United States, by certified mail, return receipt requested, at the Attorney General’s Office, U.S. Department of Justice, 950 Pennsylvania Avenue, NW, Washington, DC 20530-0001, to the attention of the Civil Process Clerk.

1.8 Venue is proper in this district pursuant to 28 U.S.C. §1391(e), and 28 U.S.C. §1402(b), as the United States is a Defendant and Plaintiffs reside in this district and have their domicile in this district. Further, venue is proper in this district pursuant to 28 U.S.C. §1391(e), and §1402(b) as the United States is a Defendant and a substantial part of the events or omissions giving rise to the claim occurred in this district.

II.

LIABILITY OF THE UNITED STATES OF AMERICA

2.1 This case is commenced and prosecuted against the United States of America pursuant to and in compliance with Title 28 U.S.C. §§2671-2680, commonly referred to as the “Federal Tort Claims Act,”. Liability of the United States is predicated specifically on Title 28

U.S.C. §§ 1346(b)(1) and 2674 because the personal injuries and resulting damages of which complaint is made, were proximately caused by the negligence, wrongful acts and/or omissions of employees of the United States of America working for the United States Postal Service in Houston, Texas, USA, acting within the scope of their office or employment, under circumstances where the United States of America, if a private person, would be liable to the Plaintiffs in the same manner and to the same extent as a private individual.

III.

JURISDICTIONAL PREREQUISITES

3.1 Plaintiffs plead pursuant to Title 28 U.S.C. §§ 2672 and 2675(a), that the claims set forth herein were filed with and presented administratively to the Defendant's agency, the United States Postal Service. Accordingly, Plaintiffs have complied with all jurisdictional prerequisites and conditions precedent to commencement and prosecution of this litigation.

IV.

THE UNITED STATES POSTAL SERVICE IS AN AGENCY OF THE UNITED STATES OF AMERICA

4.1 The United States Postal Service is an agency of the United States of America. The United States Postal Service is an "independent establishment of the executive branch of the Government of the United States." 39 U.S.C. § 201. The United States of America, Defendant herein, through its agency, the United States Postal Service, at all times material hereto, owned, operated and controlled the United States Postal Service in Houston, Texas and staffed said facilities and vehicles with its agents, servants, and/or employees.

V.

EMPLOYMENT AND COURSE AND SCOPE

5.1 At all times material hereto, all persons involved in supervising and operating the United States Postal Service vehicle in question were agents, servants, and/or employees of the United States of America, or some other agency thereof, and were at all times material hereto, acting within the course and scope of such employment.

VI.

FACTS

6.1 This is a Federal Tort Claims Action for monetary damages sustained by the Plaintiffs resulting from personal injuries to Diana Ponce Juarez, E.H., minor child, and S.R., minor child, a result of negligent operation of a United States Postal Service vehicle.

6.2 This claim concerns an automobile collision on or about November 16, 2019, in Houston, Texas at approximately 11:00 a.m., at 3500 Oak Forest Drive, wherein an employee of the United States Postal Service, working within the course and scope of her employment with the United States Postal Service and operating a United States Postal Service vehicle, negligently caused an accident that resulted in personal injuries and damages to Plaintiffs Diana Ponce Juarez, E.H., minor child, and S.R., minor child. Plaintiff Diana Ponce Juarez was driving Northbound on Oak Forest Drive. Plaintiffs E.H., minor child, and S.R., minor child were passengers in said vehicle. Suddenly and without warning, Eva Deene White, a United States Postal Service employee, who was traveling Westbound on 1300 Judiway Street, failed to yield the right of way leaving a stop sign and struck Plaintiff Diana Ponce Juarez's vehicle.

6.3 The United States Postal Service employee's failure to exercise reasonable and ordinary care in operating a United States Postal Service vehicle on or about November 16, 2019

caused a collision between a United States Postal Service vehicle and Diana Ponce Juarez, E.H., minor child, and S.R., minor child. Plaintiff Diana Ponce Juarez was lawfully operating her vehicle.

6.4 As a direct and proximate result of Defendant's negligence, Plaintiffs sustained serious personal injuries and damages set forth below. Diana Ponce Juarez's injuries include multiple large herniations in her spine and are in all likelihood permanent, and will cause debilitating chronic pain and mental suffering for the remainder of her life and will severely limit her ability to perform activities of daily living. In addition, Diana Ponce Juarez has undergone low back surgery and will most likely need future surgeries and medical treatment, including but not limited to, neck and back surgeries.

VII.
CAUSE OF ACTION AGAINST
THE UNITED STATES OF
AMERICA

7.1 Defendant, the United States of America, was negligent in one or more of the following respects:

1. Failure to maintain a proper lookout;
2. Failing to control speed;
3. Failing to make a proper application of the brakes of the vehicle;
4. Failing to turn the vehicle to avoid a collision;
5. Operating the vehicle in a reckless manner;
6. Failing to maintain proper and safe control of the vehicle;
7. Other violations of the Texas Transportation Code.

7.2 At all times mentioned herein, the employees, agents, and/or representatives of the United States Government were negligent, and causative of the injuries and damages sustained by Plaintiffs.

VIII. DAMAGES

8.1 As a proximate result of the defendant's negligent acts or omissions, Plaintiffs suffered injuries which would not otherwise have occurred. Plaintiffs Diana Ponce Juarez, E.H., minor child, and S.R., minor child hereby plead for all damages available under Texas state law, federal law, and equity including but not limited to, past and future physical pain and suffering; past and future mental anguish, suffering, emotional distress; past and future impairment and disability; past and future physical disfigurement; past future loss of income and impairment of earning capacity; past and future interference with her normal and usual activities; past and future household services; past and future reasonable charges for necessary medical care, nursing, hospital, rehabilitation services, custodial care, health care, supplies, attendant care expenses, and other health services; past and future loss of care, comfort, companionship and society; past and future reasonable and necessary expenses incurred for substitute domestic services; and out of pocket expenses.

IX. PRAYER

9.1 Plaintiffs request that Defendant be cited in terms of law to appear and answer herein; that Plaintiffs have judgment against Defendant, for the amount of actual damages, and all other damages under applicable federal and state law to which they are entitled; for post judgment interest at the applicable legal rate; for all recoverable Court costs incurred in this litigation; and for such other and further relief, to which Plaintiffs may show themselves entitled.

Respectfully submitted,

BY: /s/ Sam K. Mukerji

Sam K. Mukerji
S.D. TX. No.: 1064231
State Bar No.: 24053377
Jonathan E. Bleyer
S.D. TX. No.: 2496379
State Bar No.: 24089990
Mukerji Law Firm, P.C.
2405 Smith Street
Houston, Texas 77006
Office: (713) 222-1222
Facsimile: (713) 222-0555
litigation@mukerjilaw.com
smukerjilaw@mukerjilaw.com
jbleyer@mukerjilaw.com

ATTORNEYS FOR PLAINTIFFS